

IN RE: HANSEN

Case Number: 25CV-0207879

Tentative Ruling on Petition for Change of Name: Petitioner Van Tran Hansen seeks to change the name of her minor daughter. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided. Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). The Court notes that the Petition indicates that the father's address is in Vietnam. The Court will permit service by mail. This matter is continued to **Monday, October 20, 2025, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC and Petition must be mailed to the father at least 50 days before the continued hearing date. (30 days are required for notice, and 20 additional days are required for mailing outside the U.S. per CCP 1005(b).) Proof of service on the father must be filed with the Court. No appearance is necessary on today's calendar.

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

Case Number: CVPO21-0198083

Tentative Ruling on Motion to Compel Deposition of Jerry Staffing, LLC's Person Most Qualified: The present motion is unopposed. Plaintiffs move to compel the deposition of Defendant Jerry Staffing, LLC's Person Most Qualified on the topic of Organizational Structure pursuant to CCP § 2025.450. Plaintiffs also request sanctions in the amount of \$2,452.50. Finally, Plaintiffs are seeking issue and evidentiary sanctions.

Merits of Motion. CCP § 2025.450 permits a noticing party to move for an order compelling the deposition if the deponent fails to appear. Plaintiffs have established that they noticed the deposition of PMQ of Jerry Staffing, LLC. Despite multiple continuances the PMQ deponent has never appeared for his/her deposition. Plaintiffs previously moved to compel the deposition, but the motion was denied based on Defendants' representations that the PMQ would be set and occur. Despite these representations, the deposition has not occurred, and the present motion was filed. The Court finds that PMQ deposition shall occur, and an order will issue to compel the deposition.

Sanction. If a motion under CCP § 2025.450 is granted, the imposition of monetary sanctions is mandatory against the deponent or party, unless the court finds that the one subject to the sanctions acted with substantial justification or that other circumstances make the imposition of sanctions unjust. CCP § 2025.450(g). Defendants have not filed an opposition to this motion and therefore have provided no justification or other circumstance to make the imposition of sanctions unjust. Monetary sanctions will be awarded as requested in the amount of \$2,452.50.

Plaintiffs have also requested various evidentiary and issue sanctions. CCP § 2023.030(b). The Court finds that the imposition of evidentiary or issue sanctions is unwarranted under the current circumstances. While there have been prior discovery disputes, there was no prior order compelling this deposition to occur.

The motion is **GRANTED**. Monetary sanctions are awarded in the amount of \$2,452.50. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.

Tentative Ruling on Motion to Compel Further, Complete and Code-Compliant Responses:

Moving Defendants request an order compelling Plaintiffs to provide further responses to Form Interrogatories and Requests for Production pursuant to CCP § 2030.210 and 2031.300. Moving Defendants served discovery on the numerous Plaintiffs but brought a combined motion as to all Plaintiffs related to purported common defects in their responses. Moving Defendants also request monetary sanctions in the amount of \$3,500.

Merits of Motion. A party may move for an order compelling further responses to form interrogatories and requests for production if the responses provided were deficient. CCP §§ 2030.300(a) and 2031.310(a). Here, Moving Defendants have identified multiple form interrogatories and request for production that they contend require further responses. After the current motion was filed, Plaintiffs provided further responses. Accordingly, the request to compel further responses is moot. If Moving Defendants determine that the further responses remain deficient, they can always file a new motion related to the further responses after participating in the statutorily required meet and confer process.

Sanctions. A party that successfully makes or opposes a motion to compel further response is entitled to mandatory monetary sanctions unless the party subject to sanctions acted with substantial justification or the imposition of sanctions would be unjust. CCP § 2030.300(d) & 2031.310(h). Sanctions can be imposed even if further responses are provided after a discovery motion is filed. CRC 3.1348(a). Motions to compel further responses must generally be supported by a meet and confer declaration. CCP § 2030.300(b) & CCP § 2031.310(b)(2). A meet and confer declaration must “state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” CCP § 2016.040. The declaration of David Ries filed in support of the motion provides the conclusory statement that the parties have “engaged in robust meet-and-confer efforts.” No specific facts are provided. No copies of meet and confer correspondence were filed with the moving papers. Moving Defendants have failed to provide a sufficient meet and confer declaration that is required to support a motion to compel further responses. Based on the deficient meet and confer declaration, the Court finds that the imposition of sanctions would be unjust.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to conform to the Court’s final ruling.

WISER, ET AL. VS. GENERAL MOTORS, LLC

Case Number: 25CV-0207048

Tentative Ruling on Demurrer: This matter is on calendar for hearing on Defendant GM’s Demurrer to the Complaint, filed June 12, 2025. On July 23, 2025, Plaintiff filed a First Amended Complaint. This is permitted per CCP § 472(a) and renders the Demurrer moot. The Court notes that the FAC was filed one day past the date for filing an opposition to the demurrer. However, proof of service indicates timely notice, so Defendant is not prejudiced. The Court will accept the late filing and drop the matter from calendar. No appearances are necessary.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (“Pitchess”): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of